

FIRST ENDORSEMENT

Chief Prosecutor APU, Andre Applewhite, Civilian Complaint Review Board, to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, December 4, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23605 against Police Officer Jean Germosen, Tax Registry No. 963537. The case was conferenced on November 9, 2024, before Assistant Deputy Commissioner of Trials Jeffrey Adler who approved the negotiated penalty of a Command Discipline Schedule B and a forfeiture of Ten (10) vacation days, after Police Officer Germosen accepted the findings and substantiation of the allegations contained in the Charges and Specifications dated June 24, 2021. Charges and Specifications are dismissed for plea purposes.

Andre Applewhite

Andre Applewhite

Chief Prosecutor APU

New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-032012BOOK & PAGE NO.
Page 1 of 4

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, GERMOSEN	FIRST JEAN	M.I.	COMMAND 730
SHIELD NO. 5117	TAX REGISTRY NO. 963537	SOCIAL SECURITY NO.	DATE APPOINTED 04/12/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Jean Germosen, on or about June 3, 2019, at approximately 2240, while assigned to 041 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) in the Bronx without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Police Officer Jean Germosen, on or about June 3, 2019, at approximately 2240, while assigned to 041 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, wrongfully used force, in that he kicked § 87(2)(b) without police necessity.	DISMISSED	VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.


FIRST DEPUTY COMMISSIONER1/23/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER3/24/25
DATE

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-032012
BOOK & PAGE NO. Page 2 of 4
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, GERMOSEN	FIRST JEAN	M.I.	COMMAND 730
SHIELD NO. 5117	TAX REGISTRY NO. 963537	SOCIAL SECURITY NO.	DATE APPOINTED 04/12/2017	
RANK/NAME OF COMPLAINANT				COMMAND
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
3. Police Officer Jean Germosen, on or about June 3, 2019, at approximately 2240, while assigned to 041 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, wrongfully used force, in that he restricted § 87(2)(b) breathing by placing a knee on his back, without police necessity.	DISMISSED	
4. Police Officer Jean Germosen, on or about June 3, 2019, at approximately 2240, while assigned to 041 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, spoke discourteously to § 87(2)(b) without sufficient legal authority, by stating in sum and substance "If you're gonna act like an animal we're gonna treat you like a fucking animal."	DISMISSED	
5. Police Officer Jean Germosen, on or about June 3, 2019, at approximately 2240, while assigned to 041 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, wrongfully used force, in that he pushed § 87(2)(b) without police necessity.	DISMISSED	


FIRST DEPUTY COMMISSIONER

1/23/25
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)


POLICE COMMISSIONER

3/21/25
DATE

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-032012
BOOK & PAGE NO. Page 3 of 4
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, GERMOSEN	FIRST JEAN	M.I.	COMMAND 730
SHIELD NO. 5117	TAX REGISTRY NO. 963537	SOCIAL SECURITY NO.	DATE APPOINTED 04/12/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
6. Police Officer Jean Germosen, on or about June 3, 2019, at approximately 2240, while assigned to 041 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, spoke discourteously to § 87(2)(b) without sufficient legal authority by using the word "Fuck."	DISMISSED	
7. Police Officer Jean Germosen, on or about June 3, 2019, at approximately 2240, while assigned to 041 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he threatened to use force against § 87(2)(b) without sufficient legal authority by stating in sum and substance "Go the fuck back upstairs or I'll fucking tase you."	DISMISSED	


FIRST DEPUTY COMMISSIONER

1/23/25
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)


POLICE COMMISSIONER

3/2/25
DATE

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO. C-032012
BOOK & PAGE NO. Page 4 of 4
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, GERMOSEN	FIRST JEAN	M.I.	COMMAND 730
SHIELD NO. 5117	TAX REGISTRY NO. 963537	SOCIAL SECURITY NO.	DATE APPOINTED 04/12/2017	
RANK/NAME OF COMPLAINANT				COMMAND
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
8. Police Officer Jean Germosen, on or about June 3, 2019, at approximately 2240, while assigned to 041 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he threatened to arrest § 87(2)(b) without sufficient legal authority.	DISMISSED	
9. Police Officer Jean Germosen, on or about June 3, 2019, at approximately 2240, while assigned to 041 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, spoke discourteously to § 87(2)(b) without police necessity by stating, "Your son was about to get fucking Tased in front of you."	DISMISSED	


FIRST DEPUTY COMMISSIONER

1/23/25
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

3/21/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, January 23, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-23605 (PODS Case #C-032012; CCRB Case #201904870) against Police Officer Jean Germosen, Tax #963537, with the recommendation that the Charges and Specifications against Police Officer Germosen be dismissed and that Police Officer Germosen receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/pk

APPROVED

MAR 21 2025

JESSICA S. TISCH
POLICE COMMISSIONER